

25NWLC67769 25NWLC67769

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-09

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Case Number: 25NWLC67769 Hearing Date: September 9, 2026 Dept: Y

25NWLC67769: LVNV FUNDING LLC vs DERRICK GREINER

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Derrick Greiner ("Defendant"), including the supporting declaration. Defendant filed its Motion to Quash Service of Summons ("Motion") on August 17, 2026 along with a Proof of Service. The Proof of Service indicates service by mail on Plaintiff Capital One, N.A. ("Plaintiff") on August 16, 2026. No opposition has been filed by Plaintiff.

Code of Civil Procedure section 1005 requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing. . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and place of address are within the State of California."

For proper notice to have been given by Defendant, this motion should have been served no later than August 12, 2026 for a hearing date on September 9, 2026. The Court continues the hearing on the Motion to September 24, 2026 at 10:30 a.m. in Dept. Y so that Plaintiff has sufficient time to file an opposition if necessary.

Clerk to give notice.